

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELTON INTERACTIVE, INC.
Complainant

vs.

FLEXPORT INTERNATIONAL LLC
Respondent

**COMPLAINANT'S EIGHTH MOTION
FOR CONFIDENTIAL TREATMENT**

Complainant Peloton Interactive, Inc. ("Peloton"), by and through its attorneys Holland & Knight LLP, hereby move pursuant to the Federal Maritime Commission's ("FMC" or the "Commission") May 13, 2024 Initial Order, Section 5(b) of the Federal Maritime Commission's Rules of Practice and Procedure (the "Rules" or individually, "Rule"), and the Served Order on Complainant's Sixth and Seventh Motions for Confidentiality Treatment, Dkt. 103 (the "Order") seeking confidential treatment of designated portions of Peloton's Initial Brief in Support of its Claims Against Flexport International LLC ("Flexport") (the "Brief"), Appendix, Proposed Findings of Fact ("PFF"), Reply Brief to Flexport's Response Brief ("Reply Brief"), and Response to Flexport's Proposed Findings of Fact ("RPFF").

On December 13, 2024, Peloton and Flexport entered a Stipulation of Confidentiality ("Confidentiality Agreement"), which provides, among other things, that "Confidential Material which is to be filed with the ALJ or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Material shall be filed and labeled in

accordance with 46 CFR §502.5.” On January 26, 2026, the Presiding Officer ordered that Peloton resubmit the confidential and public versions of its Brief, Appendix, PFF, Reply Brief, and RPPF by February 27, 2026, as well as resubmit any motion for confidential treatment no later than March 13, 2026.

In accordance with the Presiding Officer’s Order, Peloton submits this motion seeking confidential treatment for the information designated as confidential in its Brief, Appendix, and PFF as submitted to the Presiding Officer on February 27, 2026. Confidential treatment is warranted because the Brief, Appendix, and PFF contain documents and deposition testimony designated by the parties as Confidential Material. Good cause exists to maintain the confidentiality of these materials because they include Peloton’s non-public contract terms, rate information, financial account information, and third-party identifiers, which the Commission’s rules permit to be protected as confidential commercial information.

The Commission has recognized that non-public contractual rates, pricing terms, and counterparty identities may warrant confidential treatment. In *Samsung Electronics America, Inc. v. SM Line Corp.*, the Presiding Officer granted confidentiality for agreements containing non-public contractual rates and party identities subject to confidentiality clauses, finding that disclosure would damage the parties’ commercial interests and that such information qualified as confidential commercial information. Dkt. No. 23-01, 2024 WL 474878 (ALJ Jan. 31, 2024). Likewise, in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Ltd.*, the Presiding Officer held that, while overbroad sealing is improper, narrowly tailored redactions of actual rate figures, non-party customer or benchmark names, and specific dollar amounts may appropriately receive confidential treatment when they reflect non-public commercial terms whose disclosure could competitively harm the parties. Dkt. No. 23-02, 2025 WL 1036410 (ALJ Mar. 31, 2025).

Peloton's documents and testimony are commercially sensitive because they include direct quotations and descriptions of confidential contract terms previously designated as confidential pursuant to orders entered in this proceeding,¹ commercially sensitive rates, the identity of and contractual terms with direct competitors, and personally identifiable information such as financial account information,² as reflected in the Updated Confidentiality Matrix submitted on February 27, 2026, included as **Exhibit 1**.

Consistent with the Presiding Officer's guidance, Peloton resubmitted updated confidential and public versions of the Brief, Appendix, PFF, Reply Brief, and RPFF following a document-by-document review. Those revisions reflect Peloton's good-faith compliance with the Order and its continued, reasoned view that the limited information designated for confidential treatment satisfies the applicable standard. The resulting redactions are tailored to protect only non-public commercial information previously designated as confidential in this proceeding and other sensitive material identified in the Updated Confidentiality Matrix. Accordingly, a renewed motion for confidential treatment is appropriate to preserve the confidentiality of this information in a manner consistent with the Commission's rules and the Presiding Officer's instructions.

MEET AND CONFER CERTIFICATION

On March 10, 2026, counsel for Peloton emailed counsel for Flexport to advise Peloton's intention to file a motion seeking confidential treatment of designated portions of its Brief, Reply Brief, Appendix, PFF, and RPFF. Peloton's counsel requested Flexport's position on the proposed

¹ Order on Pending Motions and Complainant's Unilateral Status Report and Amending Scheduling Order, Dkt. 72 (ALJ June 30, 2025).

² Pursuant to 46 C.F.R. § 502.5(b), a motion is not required for financial account information redacted in accordance with 46 C.F.R. § 502.13; nevertheless, out of an abundance of caution, the redacted information is noted here for completeness and is reflected in the Updated Confidentiality Matrix submitted on February 27, 2026.

motion. On March 12, 2026 Flexport counsel advised that Flexport takes no position on the proposed motion.

CONCLUSION

For the foregoing reasons, Peloton respectfully requests that the materials and exhibits designated as confidential in the Brief, Appendix, and PFF be kept confidential and not disclosed to the public at this time.

Respectfully Submitted,

Dated: March 13, 2026

HOLLAND AND KNIGHT LLP

By: <u>/s/ Kristine O. Little</u> Gerald A. Morrissey III Kristine O. Little 800 17th Street N.W. Suite 1100 Washington, D.C. 20006 Telephone: (202) 469-5497 Telephone: (202) 469-5549 gerald.morrissey@hklaw.com kristine.little@hklaw.com <i>Counsel to Complainant Peloton Interactive, Inc.</i>	Christopher R. Nolan Allison N. Skopec 787 7th Street New York, NY 10019 Telephone: (212) 513-3200 chris.nolan@hklaw.com allison.skopec@hklaw.com <i>Counsel to Complainant Peloton Interactive, Inc.</i>	Allison J. Luzwick 200 S. 10th Street, Suite 1000 Richmond, VA 23219 Telephone: (804) 799-6593 allison.luzwick@hklaw.com <i>Counsel to Complainant Peloton Interactive, Inc</i>
--	--	---

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on March 13, 2025, the undersigned served the attached document on counsel at the following email addresses:

SPECTOR RUBIN, P.A.
Andrew R Spector, Esq.
Robert M. Borak, Esq
3250 Mary Street, Suite 405
Miami, FL 33133
Tel: (305) 537-2000
Fax: (305) 537-2001
andrew.spector@spectorrubin.com
robert.borak@spectorrubin.com

*Counsel for Respondent,
Flexport International LLC*

/s/ Allison N. Skopec